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**Dialogue between
Jakarta and Papua**
A perspective from Papua

The Human Rights Office aims to promote awareness of the human rights situation in Africa, Asia and Oceania. In pursuit of this objective we are actively involved in human rights networking and foster exchanges between missio's church partners in Africa, Asia and Oceania and church and political decision-makers in the Federal Republic of Germany. This Human Rights series comprises country-by-country studies, thematic studies and the proceedings of specialist conferences.

Papua Conflict began when Indonesia took control of Papua on 1 May 1963, and it continues to this day. The conflict involves two parties, namely the Government of Indonesia and the Papuan people. It has brought about gross human rights violations in the western half of the island of New Guinea. Both conflicting parties are already committed to settle the conflict through dialogue. They have repeatedly communicated their commitment for dialogue through their public statements. However, so far there has been no attempt to lay out in writing the kind of dialogue desired by the Government and the Papuan people.

This study on Dialogue Jakarta-Papua proposes a concept for dialogue to address the Papua Conflict. This concept is offered as a basis for discussion. This study highlights things that have to be agreed before the process of dialogue is initiated, offers some principles and guidelines for dialogue, illustrates the mechanism of dialogue, identifies the participants and facilitators of dialogue, and argue for the need for follow-up monitoring. The study argues that the independence of West Papua should not be discussed in the table of negotiation between the Government of Indonesia and the Papuan People.

This is an English Version translated from its original version in Indonesian language entitled *“Dialog Jakarta-Papua, Sebuah Perspektif Papua”*, published in 2009 by the *Justice and Peace Secretariate of the Diocese of Jayapura* (Sekretariat Keadilan dan Perdamaian Keuskupan Jayapura), Papua.

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Profile of West Papua

Name of territory:	called West Papua by the indigenous Papuans; referred to as Papua (formerly <i>Irian Jaya</i>) by the Indonesian government.
Status:	Dutch Colony from 19828 to 1962. Taken over by Indonesia in 1963 and it has been an Indonesian Province. In 2001, the territory has been an Autonomous Province. However, in 2006, the Indonesian government divided the territory into two provinces, namely <i>Papua</i> (Propinsi Papua) and West Papua (Propinsi Papua Barat) Provinces.
Area:	421,918 sq km (both provinces)
Total Population	2,015,616 in Papua Province (2007) and 702,202 in West Papua Province (2006)
Inhabitants:	1,241,462 (52%) indigenous Papuans; 1,145,965 (48%) Indonesian immigrants (2002)
Life Expentancy:	66.9 years
Government:	Barnabas Suebu as the elected governor for the period from 2006 to 2011 in Papua Province and Abraham O. Ataruri as the elected governor for the period from 2006 to 2011 in West Papua Province.
Capital:	Jayapura for Papua Province and Manokwari for West Papua Province.
Economy:	Main assets are oil, gas, copper, gold and other natural resources. Despite its natural resources, some 793.400 people (40.78%) of the total population in Papua Province (2007) and 127,518 households (74.93%) of the 16,990 households in West Papua Province(2005) were categorized as people living under poverty line.
Religions:	In Papua Province (2006), some 83. 41% of the total population were Christians, 18% Muslims, and 0.32% other religions (Hinduism and Buddhism). In West Papua Province (2005) live some 550,326 Christians and 213,311 Muslims.
Language:	Bahasa Indonesia (Indonesian) plus 252 tribal languages.

Introduction

There are two parties to the Papua conflict: the government of Indonesia and the Papuan people. The conflict began when Indonesia took control of Papua on 1 May 1963 and it continues to this day.¹ To resolve a conflict its causes must first be identified. Whereas the Indonesian Institute of Sciences (LIPI) has already produced an analysis on the causes of the Papua conflict,² this paper will focus on the kind of dialogue needed to resolve it.

In the past there have been various attempts to seek a peaceful resolution to the Papua conflict through what has become known as the Jakarta-Papua dialogue between the Indonesian government and the people of Papua. Both parties to the conflict have made public statements in support of efforts to resolve the conflict through dialogue. So far, however, there has been no attempt to set out in writing the kind of dialogue desired by the government and the Papuan people. The present paper represents an attempt to bridge this gap by proposing a concept for dialogue to address the Papua conflict that is written from a Papuan perspective.

It should be stated from the outset that, although the author of this paper is Papuan, the concept proposed here is not put forward on behalf of all the Papuan people. The ideas contained in this paper are my personal views and I do not pretend that they represent the views of even a single section of the Papuan people let alone the entire population. There are certain to be other Papuans who entertain a different concept of dialogue to that offered here. It would be a fortunate coincidence if other Papuans were to share the same perspective as the one outlined in this paper. This concept for dialogue is offered as a basis for discussion which others are free to accept or reject.

There are 15 main points to this paper. I will seek to

1. outline the importance of the Jakarta-Papua dialogue as a means for the peaceful resolution of the Papua conflict;
2. illustrate that there is a will for dialogue among both parties to the conflict;
3. argue that Papuans need to make clear that the issue of Papuan independence will not be on the agenda for dialogue;
4. underscore the need for the Indonesian government to demonstrate that it is serious about dialogue with the Papuan people;
5. stress the importance of clear terms of reference for dialogue;
6. set forth some basic principles for dialogue;
7. explain the objective of dialogue;

8. emphasise the importance of participation by the Papuan people in dialogue;
9. offer some targets that could be achieved through dialogue between Jakarta and Papua;
10. illustrate the stages of dialogue;
11. identify the participants in dialogue;
12. identify the role of facilitators in the process of dialogue;
13. underscore the need to involve centres of research and study;
14. explain the roles of third parties; and
15. argue the need for follow-up monitoring.

These points are not necessarily new, having been outlined previously in newspaper articles carried by *The Jakarta Post*, *Suara Pembaruan*, *Sinar Harapan* and the magazine *Sampari*. This paper summarises my thinking on dialogue directed towards a peaceful resolution of the Papua conflict.

In outlining my personal perspective I do not intend to impose my views on any party, either the government or the Papuan people. My only hope is that this paper will help to stimulate discussion and open up a debate within Papua and beyond on a resolution of the Papua conflict through a Jakarta-Papua dialogue.

1. The Case for Dialogue on the Papua Conflict

Dialogue between the government of Indonesia and the Papuan people is possible as long as there are compelling reasons persuading the parties involved to believe in its importance. This section sets out a number of factors that demonstrate the importance of dialogue in achieving a peaceful resolution of the Papua conflict.

1.1. Violence will not resolve the Papua conflict

Papua's history clearly shows that the conflict has yet to be addressed in a comprehensive manner, notwithstanding the fact that many different approaches have already been tested, including the use of force by all parties to the conflict. The conflict in the form of a disagreement between two opposing parties – the government of Indonesia and the Papuan people – began when Indonesia took control of Papua on 1 May 1963.

Ostensibly with the intent of resolving the Papua conflict the government has conducted a number of large-scale military operations, for example *Operasi Sadar* (1965–1967), *Operasi Brathayudha* (1967–1969), *Operasi Wibawa* (1969), the military operation in the *Jayawijaya Regency* (1977), *Operasi Sapu Bersih I* and *II* (1981), *Operasi Galang I* and *II* (1982), *Operasi Tumpas* (1983–1984) and *Operasi Sapu Bersih* (1985).³ Military operations conducted in Mapunduma (1996)⁴ and the human rights violations in Wasior (2001) are further evidence of the violent approach of the Indonesian government to conflict resolution.⁵ Even after the enactment of the Law on Special Autonomy for Papua in 2001 violence continues to be used by the military as a means to address the Papua conflict. Proof of this is provided by the military operations in Wamena 2003⁶ and Puncak Jaya Regency in 2004.⁷

These attempts to resolve conflict through the use of violence have resulted in fatalities on both sides. However, the greatest numbers of casualties have occurred among the Papuan people, particular those in remote communities. In many Papuan villages there are people who recall the bitter experience of military operations. Some will point to the river and recount how members of their family died there. Some will point to a tree and remember how their son was killed there. Others will point to a ravine where the dead body of their child was disposed. Some will show the remains of a former village razed to the ground in a military operation. Others recall houses in the village being burned by the

military. Some will point to the forest where they sought refuge from the threat posed by military operations.

History shows that violence has not been able to resolve the Papua conflict; it has merely increased the number of victims and exacerbated the problems. A peaceful resolution of the Papua conflict is, therefore, urgently needed to prevent further bloodshed.

1.2. Special autonomy has failed to improve the welfare of Papuans

It is now common knowledge that the government has failed to implement the Law on Special Autonomy for Papua. Special autonomy status was granted to the Province of Papua in 2001 (then known as Irian Jaya Province) as part of state policy; it represented the government's response to the increasing calls for independence by indigenous Papuans. The government therefore promulgated Law No. 21 of 2001 on Special Autonomy for Papua Province under the provisions of regulations MPR RI No. IV/MPR/1999 and MPR RI No. IV/2000.

Special autonomy was regarded as a genuine attempt by the government to provide realistic solutions to a number of problems propelling Papuans' demands for independence. It gained support in some sections of domestic and international opinion. The European Union, the government of the United States, and Pacific nations belonging to the Pacific Island Forum (PIF) expressed clear and unequivocal support for effective implementation of special autonomy.

With domestic and international backing the government of Indonesia (from the central government down to local administrations) had an obligation to implement special autonomy fully, comprehensively and consistently, to provide guarantees for the continued existence of indigenous Papuans, to protect Papuan cultural values and to ensure a decent standard of living for Papuans. Following the enactment of the law the government faced the task of drafting and promulgating the supporting regulations required to put the law into practice.

However, seven years after the Law on Special Autonomy came into effect the problems faced by the Papuan people have still not been properly addressed. Moreover, human rights violations that occurred prior to the enactment of special autonomy have still not been dealt with in an appropriate manner. In addition, human rights continue to be violated in this era of special autonomy, e.g. in Wasior in 2003, when there were four fatalities, and in Wamena in 2005, when nine people died.

The practice of illegal logging and fishing also continues unabated. With the sanction of the government, forests continue to be destroyed by logging

activities, the development of palm oil plantations and rampant mining. The quality of education remains poor, health services in rural areas are minimal and HIV/AIDS is spreading rapidly. The pace of migration to Papua from other parts of Indonesia is accelerating and not properly regulated. Non-Papuans dominate many aspects of life in Papua. There is discrimination against indigenous Papuans and they are marginalised in their own land.

Special autonomy for Papua has achieved nothing. In fact, as stated by the *Sinar Harapan* newspaper, "Papua Province is a clear example of the failure to implement special autonomy".⁸ In 2003, the National Bureau of Statistics reported that 80% of the 2,469,785 inhabitants of Papua were "poor." In February 2007, Governor Bas Sueba quoted official statistics in announcing that there were 480,578 poor families in the province of Papua. This means that 81.52% of the total number of families in 2,283 villages, or 72.72% of the people in Papua, can be characterised as poor or chronically poor. In other words, people in villages all across Papua without exception are poor.⁹ Irrespective of the massive amounts of money poured into Papua the indigenous people of Papua live below the poverty line in a country – their own country – that is rich in natural resources.

1.3. Lack of consistency by the government in implementing the Law on Special Autonomy

The government has been inconsistent in implementing its own policy. The Law on Special Autonomy comes under the provisions of an edict of the national parliament, MPR RI Year 1999. The Law on Special Autonomy for Papua Province (Law No. 21/2001) came into effect when it was signed by the then President, Megawati Sukarnoputri. However, 25 months after the enactment of the law, this very same president issued a presidential instruction (*Inpres* No. 1/2003) to advance plans for the creation of the new provinces of West Irian Jaya and Central Irian Jaya, even though there had been no prior consultation with the regional government or the indigenous people of Papua. The president made this instruction in the knowledge that it contravened the Law on Special Autonomy.

The inconsistency of the government in implementing special autonomy was also evident when it issued a substituting regulation (*Perppu* No. 1/2008) for the revision of Law No. 21/2001 on Special Autonomy for Papua. In making this decision the government demonstrated that it could amend the special autonomy provisions as it saw fit in the pursuit of its own interests and without any consultation with the people of Papua, as required by the Law on Special Autonomy (The Law states: "Revision to the provisions of the Law must be brought

before the national parliament or the government by the Papuan people via their representatives in the Papuan People's Council and the regional assembly in accordance with the terms of the prevailing stipulations."¹⁰)

The government of Indonesia under President Susilo Bambang Yudhoyono subsequently upheld the creation of West Irian Jaya Province. In contravention of the Law on Special Autonomy, the Yudhoyono government issued a substituting regulation (*Perppu* No. 1/2008) covering a revision of special autonomy. In addition, President Yudhoyono issued Law No. 35 on the establishment of West Papua Province instead of promoting consistent implementation of special autonomy. Furthermore, President Yudhoyono issued another Presidential Instruction (*Inpres* No.5/2007) for Accelerated Development in the Provinces of Papua and West Papua.

The national parliament has also shown that it lacks goodwill in implementing special autonomy. This became evident when the People's Representative Council (DPR) took the initiative on 22 January 2007 in drafting a law for the formation of four new provinces in Papua (provinces of West Papua, South-west Papua, South Papua and Central Papua). Neglecting its obligation to bring about thorough implementation of special autonomy, the government, with support from the national parliament, instead busied itself with the creation of new regencies in Papua Province. These initiatives and measures multiplying provinces and administrative units further undermined the trust and confidence of Papuans in the genuine will of the central government to implement special autonomy. They also led to confusion between implementation of the policy to create new administrative units and the policy of special autonomy.¹¹

In addition, efforts to implement special autonomy have proved ineffective, as they have not been carried out in an orderly or systematic fashion. In the words of the Governor of Papua, Barnabas, "the implementation of special autonomy from 2002 to 2006 can be summed up in two words "*kacau balau*" (chaos and confusion).¹² According to the governor, this chaos has three causes: 1) the lack of a common perception between the people, the local government and the central government regarding special autonomy, 2) the lack of will, sincerity and seriousness on the part of the central government to entrust the provincial authorities to implement special autonomy, and 3) the absence of regulations needed for the implementation of provisions of the Special Autonomy Law (*Perdasi* and *Perdatus*).

The confusion and chaos that have characterised the implementation of special autonomy to date were in fact predictable and understandable. In my view, this is because the government did not have clear targets for what it wanted to achieve by means of special autonomy. To this day the government lacks

a clear vision for special autonomy. Without clear, long-term, final goals the government is unable to set interim targets for a five-year period, let alone for what it aims to achieve on an annual basis. As a consequence there has been no clear direction or benchmarks for the implementation of special autonomy in Papua.

The central government's lack of vision for special autonomy has allowed development policies to be determined according to the whims of local leaders. The government in Jakarta cannot fulfil its monitoring role in overseeing the implementation of special autonomy in Papua. As a result the practice of special autonomy has been inconsistent and lacking direction. Hence it does not seem surprising that the government is mostly blamed for the failure of special autonomy.¹³

While the government's commitment to implement special autonomy has seemed to falter, this has not stopped it from increasing the military and police presence in Papua. The number of military posts, especially along the border with Papua New Guinea, has doubled, the size of infantry battalions established since special autonomy took effect has increased and new infantry battalions have been deployed in some areas. The Papuan people bear the brunt of an excessive number of military personnel from outside Papua (*non-organic*) and their arrogant attitude in dealing with local communities. The arrogance of the security forces is expressed in the form of arbitrary acts against indigenous Papuans, whom the military continue to regard with suspicion and treat as separatists.

1.4. Declining trust of the government among Papuans

Papuans know that the Special Autonomy Law has accommodated a number of their concerns. They are working under the assumption that, if special autonomy is properly implemented, these problems will be resolved. It is hoped that implementation of special autonomy will improve the welfare of indigenous Papuans, that they will gain a sense of justice and that their right to life will be guaranteed. Once Papuans experience the benefits of special autonomy, it is likely that they will not feel the same need to hoist the Morning Star flag and call for independence.

Special autonomy has not brought about significant changes in the lives of indigenous Papuans. In fact, distrust of the Indonesian government increases by the day. There are a number of signs of this distrust. Beginning in March 2008, Papuans began to demand a referendum to decide the political status and future of the land of Papua. This demand was put forward mainly by youth and students associated with the *Forum Pemuda Mahasiswa Papua* (FPMP). They called for a

referendum because they felt the government had failed to implement special autonomy.¹⁴ Distrust of the government is also expressed in attempts to raise the Morning Star flag. There were frequent incidents throughout Papua during 2008, for example in Timika on 23 September, in Wamena on 9 August, in Fakfak in July 2008 and in Manokwari and Jayapura on 1 July 2008.

From my perspective, both the demands for a referendum and the attempts to fly the Morning Star flag have occurred because of the government's failure to address the problems that have given rise to these protests through effective implementation of special autonomy. As more Papuans become aware of the failure of special autonomy and realise the consequences of this for their lives and their future, more and more people will lend their voice to the calls for a referendum and an increasing number of flag-raising. It is only natural that the larger the number of people who question the merits of being an Indonesian citizen, the greater the numbers of people will be who are inclined to rally to the call for independence. Both the calls for a referendum and flag-raising are a clear sign of the failure of the government to implement special autonomy. This failure of the government has given new strength to separatism in Papua. In the end it is the Indonesian government itself that provides the strongest stimulus and cause for the growing separatist movement in Papua.

1.5. Declining international support for the government's position

In my opinion, another consequence of the government's failure to implement special autonomy has been the increasing distrust of the Indonesian government shown by various elements of the international community. Even though foreign governments have not publicly stated that they have lost faith in the Indonesian government's intention to fully implement special autonomy, I see that there are signs of mistrust amongst members of the international community, although I might of course be wrong in this interpretation. For example, a letter of 5 March 2008 written to President Susilo Bambang Yudhoyono by two members of the U.S. Congress, Eni Faleomavaega and Donald Payne, said: *"We are also disappointed that your government has not made substantial progress in implementing special autonomy"*.¹⁵

Forty members of the U.S. Congress subsequently sent a letter to President Yudhoyono urging the release of two political prisoners in Papua, Filep Karma and Yusak Pakage.¹⁶ This letter pointed to the fact that violations of human rights, including the right to free expression for the Papuan people, were occurring in Papua despite special autonomy.

Even more significant is the approval of House Appropriation Bill HR 2601, June 2005, by the U.S. Congress, which called on the Secretary of State to evaluate the implementation of special autonomy in Papua and the 1969 "Act of Free Choice" in Papua. This bill is still in effect, even though it has yet to be debated by the Senate. If there is a strong move to press ahead with the bill, HR 2601 could be passed into law. Although Barak Hussein Obama, who has a unique relationship with Indonesia, has become the president of the United States, I feel the Indonesian government has no guarantee that the U.S. Congress and government will not give serious attention to the Papua conflict.

In 2008, we were all surprised by the launch of International Parliamentarians for West Papua (IPWP) at the House of Commons in London on 15 October. While the parliamentarians joining this forum do not represent the position of their parliaments or governments, it is nonetheless significant that a number of parliamentarians from different nations should have come together as IPWP to raise the issue of Papua. It has been reported that the launch of IPWP was neither a parliamentary event nor an initiative of the British parliament, simply an act by two British parliamentarians. The Indonesian ambassador to the U.K. played down the significance of the event, as did Foreign Minister Hassan Wirayuda, who said the IPWP was only a "tea party".

While the IPWP might not cause the Indonesian government any real concern, we are well advised to be familiar with its agenda. As reported in the newspaper *Cenderawasih Pos*, the IPWP will work, amongst other things, to bring about a new process of self-determination for the Papuan people based on international law, the withdrawal of (Indonesian) military forces, the deployment of international peacekeepers under United Nations supervision, an embargo on arms sales to Indonesia until there is full military withdrawal from Papua, and the dispatch of a fact-finding mission to Papua. The IPWP will seek to convince the U.N. Secretary General to review the role of the United Nations in the Act of Free Choice of 1969 and to send a special U.N. representative to monitor the human rights situation in Papua.¹⁷ It is clear that the IPWP does not regard special autonomy as a solution to the problems in Papua. At this point it is difficult to predict the impact of the IPWP. We do not know if more parliamentarians from other countries will join. We can be certain, however, that the level of international trust and support for the government of Indonesia could deteriorate at any moment (although this cannot automatically be interpreted as support for the struggle for West Papuan independence).

In my opinion, world attention will increasingly be directed towards Papua. The Papua conflict will demand international attention because the East Timor conflict was resolved through a referendum and the conflict in Aceh has been

addressed through peace talks and the signing of the Helsinki Agreement between the Indonesian government and representatives of the Free Aceh Movement (GAM). Hence Papua is now the only part of Indonesia that is resisting the control of the Indonesian government. As a result the international community will increasingly be looking to see how the Indonesian government can resolve the Papua conflict peacefully through dialogue.

2. The Will to Engage in Dialogue

We should recognise that both Jakarta and Papua have expressed their will to resolve the Papua conflict peacefully through dialogue. This means that both sides already have a constructive attitude to dialogue, which will be necessary to move forward in a process of dialogue to address the Papua conflict. This attitude has been stated publicly on a number of occasions by representatives of Jakarta and Papua.

2.1. Commitment from Jakarta

The government's commitment to resolve the Papua conflict through dialogue has been stated publicly by a number of Indonesian officials based in Jakarta. This ties in well with the personal commitment of President Susilo Bambang Yudhoyono, who aims to address national problems by means of justice, democracy and peace. President Yudhoyono has issued an appeal, saying "Let us give priority to a peaceful approach, compassion and democracy in resolving problems, including problems of conflict and security."¹⁸ This commitment of the government under President Yudhoyono to address the Papua conflict peacefully through dialogue and persuasive means has been well publicised by the media and as a result it is well known domestically and internationally. President Yudhoyono stressed his perspective on governance for resolution of the Papua conflict in his state address of August 2005:

"The government wishes to solve the issue in Papua in a peaceful, just and dignified manner by emphasizing dialogue and persuasion. The policy for the settlement of the issue in Papua is focused on consistent implementation of special autonomy as a just, comprehensive and dignified solution."¹⁹

On a separate occasion President Yudhoyono stated publicly the commitment of his government to find a way to address the conflict in Papua democratically and peacefully in the same way as it handled the situation in Nanggroe Aceh Darussalam; "In the case of Papua, it is clear that we will place emphasis on ways that are democratic and peaceful, as in the case of Aceh."²⁰

In keeping with the government's commitment under the leadership of President Yudhoyono, Hassan Wirayuda as Minister for Foreign Affairs has also expressed the government's will to prioritise a peaceful resolution to the situation in Papua; "*The successful peace process in Aceh should inspire a similar move for a non-violent solution in Papua*".²¹ On a separate occasion, Foreign Minister

Wirayuda stressed publicly that the government seeks to resolve the situation in Papua through dialogue.²² The importance of dialogue has also been underscored by Minister of Defence Yuwono Sudarsono.²³

Nevertheless, the government does not want foreign parties to be involved in handling the problem of Papua since it feels that it is a domestic issue. This was stressed by President Yudhoyono when he said; *“The issue in Papua is our domestic issue. We decline foreign interference in settling that issue”*. A similar sentiment was expressed by Foreign Minister Wirayuda when he said; *“We never think about involving foreign elements in the discussion about Papua.”*²⁴

The People’s Representative Council (DPR), the nation’s parliamentary and legislative body, has also pointed to the importance of dialogue in addressing the Papua problem.²⁵ This attitude was expressed by Commission I, which is responsible for security and foreign affairs, through its chair, Theo L. Sambuaga, who called upon the government to hold a national and local dialogue to address the Papua problem.²⁶

The Regional Representative Council (DPD) has publicly expressed its support for dialogue on the Papua problem. Laode Ida, the Deputy Speaker of the DPD, has stressed that a national dialogue on the Papua problem should be held.²⁷

All statements by the government of Indonesia demonstrate its will for dialogue with Papuans, even though a number of issues regarding dialogue will still have to be agreed upon before dialogue can start. These issues will also need to be noted in terms of reference for dialogue.

2.2. Commitment from Papua

Papuans have long realised that the situation in Papua cannot be addressed through violent means, including the kind of military operations that have taken place since Indonesia took control of Papua. The experience of Papuans themselves has taught them that violence only invites a brutal reaction from the Indonesian government, in particular from the military apparatus. Violence always leads to violations of human rights, injury, suffering and psychological damage. Aware of the consequences of violence, Papuans have disavowed violent means and opted for non-violent ways to resolve conflict in Papua. This commitment was made at the Second Papuan Congress in 2000, when Papuans chose dialogue with the Indonesian government as the civilised way to resolve the conflict in Papua.²⁸

The desire for dialogue is not limited to the urban inhabitants of Papua. Dialogue is also preferred as the best way to resolve the conflict by the guerrilla

front that constitutes the Free Papua Movement (OPM). This includes those elements of the OPM who have been part of the armed struggle in the mountains and also those living in exile.²⁹ The desire of the OPM for dialogue with Indonesia was clearly reinforced by the West Papua National Coalition for Liberation (WPNCL):³⁰

“WPNCL will continue to seek internationally mediated negotiation with the Republic of Indonesia as the best way of resolving the ongoing armed conflict promoted by the Indonesian security forces and reversing the disastrous human rights and spiralling health situation of the West Papuan people.”³¹

Since the Second Papua Congress in 2000 there have been many expressions of the importance of dialogue at many different events, in different places and by different parties (and also with different perspectives). The decision of the Papuan people to use peaceful means to resolve the Papua problem is also supported by religious leaders. The first expression of support for dialogue came from Bishop Leo Laba Ladjar OFM, the head of the Catholic Diocese of Jayapura. Bishop Leo has a strong commitment to work for “Papua, Land of peace”. He writes:

“The people of Papua have committed to a non-violent struggle through negotiation and diplomacy in ways that are peaceful and democratic. We hope that this peaceful attitude will not be met with guns, bombs and imprisonment by the Indonesian government. If the response (by the government) favours dialogue that is democratic, just and honest, this will certainly pour cold water on the efforts by agent provocateurs – either on the side of the government or the Papuan people – who work unceasingly to provoke violence.”³²

At the end of June 2000, bishops of the Catholic Church in Papua from the four dioceses of Merauke, Agats, Manokwari-Sorong and Jayapura met the then President Abdurrahman Wahid in Jakarta and requested the government to resolve the Papua conflict through dialogue.³³

The Protestant churches also support the commitment of the Papuan people to resolve conflict peacefully. Leaders of all church denominations are convinced that violence will not resolve the situation. They reject all forms of violence, such as shooting, killing, burning, intimidation and psychological harm. They have also encouraged the government and the Papuan people to undertake dialogue to identify core problems, seek root causes and come to agreement on solutions in a democratic and peaceful way. They hope for a dialogue based on the principles of equality, justice, truth and respect for human dignity.³⁴ Church leaders

hold firm to the belief that the Papua conflict cannot be resolved through the imprisonment and murder of Papuan people but through dialogue. The shared perspective of church leaders on the importance of dialogue was unequivocally conveyed by a joint statement issued in October 2008. It stated: “No matter how sensitive, the Papua situation needs to be addressed through peaceful dialogue between the government and the Papuan people. We are certain that through dialogue a peaceful solution can be found.”³⁵ To prevent all forms of violence that could intensify the vertical conflict between the Papuan people and Indonesia and trigger horizontal conflict between people of Papua, the church leaders proposed that dialogue be undertaken as the dignified way to resolve the Papua conflict peacefully.³⁶

Dialogue, as a means to seek resolution of the Papua conflict, has received the support of leaders of all religions in the Land of Papua, including Catholicism, Protestantism, Islam, Hinduism and Buddhism. Religious leaders see the importance of dialogue on the Papua conflict as a part of peace-building. They realise that cooperation among religious leaders for peace is a kind of calling³⁷ and an aspect of their role to defend human values and dignity.³⁸ They regard this as part of their mission as religious leaders, which is to work for truth, justice, peace and reconciliation in Papua.³⁹ Apart from opposing all forms of violence Papuan religious leaders stress the importance of dialogue in resolving conflict in Papua. Religious leaders have been pushing the government and the Papuan people to become involved in dialogue and to seek dialogue mediated by a neutral third party. This was one of the recommendations of the Consultative Forum of Religious Leaders in Papua (FKPPA) in their joint statement and recommendations of December 2007.⁴⁰ As part of the celebration of the Papuan Day of Peace in 2008 religious leaders also made an appeal regarding dialogue:

“Differing political ideologies, caused among other things by different interpretations of the history of Papua’s integration into the Unitary State of the Republic of Indonesia, are a barrier to development and have the potential to lead to destructive conflict. No matter how difficult and sensitive this issue may be, we hope that it can be resolved without delay through dialogue and reconciliation.”⁴¹

The path of dialogue as the dignified way to resolve the Papua conflict enjoys wide support not only from these religious leaders, but also from a number of civil society organisations. NGOs have asked that dialogue be held to end conflict in Papua.⁴² Students have also called for dialogue to resolve the Papua Conflict.⁴³ Calls for dialogue to end the conflict in Papua have also been voiced by the women of Papua.⁴⁴

The statements by these parties, as outlined above, give a clear picture that it is not only the OPM but also civil society in Papua that is seeking dialogue between Jakarta and Papua, notwithstanding the fact that the agenda for dialogue still needs to be decided upon by the parties to the conflict.

3. Making Clear that Independence for Papua is not on the Dialogue Agenda

Irrespective of the fact that both sides of the conflict have expressed their willingness to resolve the Papua conflict through dialogue, no Jakarta-Papua dialogue has been held to date. Why has the Jakarta-Papua dialogue yet to be realised? From the Papuan perspective one reason is the fact that Jakarta views Papuans with suspicion. It is thought that Jakarta is concerned that, if it opens the door to dialogue, Papuans will take the opportunity to call for independence for West Papua and this issue will hijack the agenda for dialogue. Hence it seems that the government is not interested or motivated to engage in dialogue with Papuans.

It seems implausible to me, however, that the government of Indonesia, as the government of a large nation, should be unwilling to dialogue with Papuans, who are also Indonesian citizens. I am certain that the government has not abandoned its commitment to resolve the Papua conflict in a comprehensive way through peaceful dialogue. My view is based on the fact that the government has experience in dialogue with separatists and also a track record in facilitating dialogue and negotiations between separatists and governments in other countries. Based on this experience, the government must be aware not only of how important it is to resolve conflict peacefully, but also how conflict can be resolved through dialogue. Hence the government must surely recognise how its interests could be served by engaging in dialogue with the Papuan people.

The experience of dialogue both as a party to talks and also as a facilitator has surely taught the government about the fundamentals required of both sides to a conflict at different stages in a peace process; before a process of dialogue can begin, when dialogue is being undertaken, and once dialogue concludes. The government would certainly wish for a dialogue that is based on trust and able to yield agreements that are satisfactory to both sides. With this in mind, and for talks with Papuans to be able to begin, I feel that the government wants the Papuan side, in particular the Free Papua Movement (OPM), to clarify its position. The government is waiting for a decision from the OPM which demonstrates clearly that the Papuans will not raise the issue of independence for West Papua in dialogue. This stance must be made clear by leaders of the OPM both orally and in writing, and publicised by the national and international media, so that it is also understood by foreign governments and institutions.

4. The Government Must Win the Confidence of the Papuan people

If the Indonesian government views Papuans with suspicion, Papuans will not trust the government. The low level of trust among Papuan people towards the government must be overcome in order for dialogue to begin. While distrust remains, any goodwill from the government, including goodwill to resolve the conflict through dialogue, will not be believed or accepted by the Papuan people. This deficit of trust must be addressed before Jakarta and Papua can take their seats at the negotiating table.

In my view, it is first and foremost the government that can address this problem. Why is it the government that must deal with this crisis of confidence? The reason why Papuans have no confidence in the government stems from the fact that its promises to Papuans in the past have rarely been fulfilled. Papuans feel that the Indonesian government has lied to them and betrayed them over and over again. In the eyes of Papuans the government is a master of deceit. Having been deceived repeatedly, Papuans are reluctant to accept or trust any show of goodwill by the government, including the promise of dialogue for a peaceful resolution of the Papua conflict. The government must work hard to demonstrate to Papuans that it is seriously committed to engaging in dialogue with the Papuan people to bring about a peaceful resolution of the conflict. I feel that Papuans are waiting for the government to do just this.

Meaningful dialogue between Jakarta and Papua will never be realised unless mutual trust can be built between both sides. This will require some “political communication” to build trust of the government among Papuans. The government could, for instance, mandate a representative to meet a number of key Papuans with the aim of establishing this “political communication”. This government delegate could meet Papuans informally at different levels and places. S/he could meet intellectuals, NGOs in Papua, the West Papua National Liberation Army (TPN WB) that leads the guerrilla struggle in the mountains, and representatives of the OPM overseas. In these meetings the delegate could convey the government’s willingness to engage in dialogue with Papuans and listen to Papuans in an effort to understand the problems they want resolved, their demands, hopes, thoughts and political position. The outcomes of these informal meetings need not be publicised in the mass media.

5. The Need for Terms of Reference

Once Papuans have declared that West Papuan independence would not be part of the agenda for talks with the government and once a government delegate has met representatives of the Papuan community, the next step would be to prepare terms of reference (ToR) for the Jakarta-Papua dialogue. These ToR could outline the basic principles for dialogue, the final objective of the dialogue, desired outcomes, as well as the stages, agenda, parties, status and roles of parties in the dialogue process, the location, and the resources for dialogue. By outlining and clarifying such issues, the ToR would help to define the direction of the entire dialogue process.

The agreed ToR must be able to give assurances to both parties to the conflict and also to establish a sense of equality. Neither party should feel that it dominates or is dominated by the other; both must have the opportunity to put forward their position. Each party must feel that its interests have been accommodated in the ToR. It is worth stressing that both parties to the conflict must agree on the ToR for dialogue.

Once the ToR have been agreed upon, it should be possible to begin dialogue with a clear direction. All parties to the dialogue must understand their roles and where and when they are required to play these roles. Each party must also prepare itself to play the role it has been designated so as to lay the ground for the success of the dialogue process.

6. Basic Principles

Dialogue between Jakarta and Papua should not become an opportunity for each side to accuse and blame the other; this would not help the process of conflict resolution. The parties to dialogue would meet not with the intent of adding to existing problems or bringing shame on each other, but to work together to find a path to address unresolved problems. The dialogue process cannot be dominated by one side or the other. To prevent distortion and to keep to the primary objective of the process the government and the Papuans must come to an agreement on a number of principles, upon which the dialogue process can be built.

Before dialogue begins, I propose that the Indonesian government and Papuan people agree that

- the Papua conflict must be resolved peacefully and without resort to violence;
- the Papua conflict must be resolved comprehensively and not in part;
- the Papua conflict must be resolved in a dignified way, i.e. through a process characterised by mutual respect and appreciation. No party should feel it has lost face.
- there must be follow-up and concrete action to implement any agreement reached.

Both parties must also agree that the entire dialogue process should be based on, and imbued with, the spirit of the universal values of compassion, freedom, justice and truth. Agreement on these principles would become the fundamental, core assets in sustaining efforts to resolve the Papua conflict in a dignified way, which is through peaceful dialogue.

7. Objective of the Dialogue: “Papua, Land of Peace”

In the past, when the idea of a Jakarta-Papua dialogue was raised, both the government and the Papuans adopted a stance that was not constructive. Both held positions that were incompatible. Their contradictory positions need to be clearly stated. On the one hand, the government reiterated its position that no threat should be posed to the territorial integrity of Indonesia. It maintained that the Unitary State of the Republic of Indonesia cannot break up, or be broken up, or be allowed to disintegrate. Its position was encapsulated in the motto of the military in Papua; “The Unitary State of the Republic of Indonesia is non-negotiable” (“NKRI, *harga mati*”). On the other hand, the Papuan people, in particular the OPM, were adamant in their position that independence for a West Papuan nation is the only solution. They viewed dialogue as a means to achieve independence. This position was symbolised by the motto “independence is non-negotiable” (“*Merdeka, harga mati*”).

If the two parties hold fast to their positions as “non-negotiables” (“*harga mati*”) the Papua conflict can never be resolved. This attitude of “*harga mati*”, which means “dead price”, would only bring about fatalities on both sides. This contradicts our desire for dialogue because of our respect for the value of human life.

If both parties are truly committed to engage in dialogue, both parties must come out of their respective corners and renounce their “non-negotiable” positions. A Jakarta-Papua dialogue cannot be used to pursue the political interests of either party. Both parties must embrace dialogue to fulfil the principle of humanity, i.e. peace. I therefore propose that a Jakarta-Papua dialogue be held to bring about peace in Papua, or to use the term of religious leaders in Papua, to bring about “Papua, Land of Peace”.⁴⁵ The dialogue can thus focus on the true underlying wishes of all involved to enable the conflict to be brought to an end, to bring about dignity and to ensure equality and development for those in need. Working in this framework, both parties can prioritise the values of humanity rather than clinging to their political views at the expense of human lives and justice. Both parties can focus their attention on the genuine needs to be addressed in order to bring about “Papua Land of Peace”.

8. Active Participation of the Papuan Community

If there is to be a participatory solution to the situation in Papua, bringing in the community will be of fundamental importance. Dialogue to bring about “Papua, Land of Peace” requires the participation of all people living in Papua in all efforts to bring about peace. All members of Papuan society must be involved in all dialogue processes, even though they may play different roles at different stages. In this paper Papuan society is understood to comprise two groups:

- indigenous Papuans
- residents of Papua.

8.1. Indigenous Papuans

Indigenous Papuans referred to here are Papuans of Melanesian racial origin. The involvement of indigenous Papuans is absolutely essential to any dialogue concerning the Papua conflict. The special character of the Papuan conflict requires the participation of indigenous Papuans in a dialogue with the government. This “special character” derives from the fact that this is a conflict between indigenous Papuans and the government. Indigenous Papuans are the ones who oppose the Indonesian government’s authority over the Land of Papua. Dialogue between Jakarta and Papua must be a dialogue between the government of Indonesia and indigenous Papuans. Any dialogue intended to seek a resolution of the Papua conflict that does not involve indigenous Papuans is not valid.

It should also be recognised that indigenous Papuans have never been given the opportunity to control their own development as part of the Republic of Indonesia. All development policies have been decided far from Papua and without any participation by indigenous Papuans. These policies have been imposed by the government on the western half of the island of New Guinea; indigenous Papuans have been forced to accept these policies without the opportunity to respond or provide alternative views. Opposition or even attempts to suggest an alternative approach have been regarded as a separatist and subversive act. As a result Papuans have become the victims of government policies.

This model of “non-participation” should be avoided by all means in a future dialogue on the Papua conflict. Indigenous Papuans must be given the broadest possible right to participate in the entire dialogue process. To do this the government must provide the opportunity and create free space for indigenous Papuans to discuss and develop an understanding of the issues they face. The government and security apparatus must give security guarantees enabling

indigenous Papuans to engage in discussion and express their opinions without fear of intimidation or harassment. The government, security forces and the community must ensure that the situation is safe and peaceful so that the dialogue process can proceed smoothly.

8.2. Residents of Papua

Residents of Papua, as referred to here, include indigenous Papuans and non-Papuans who live in the Land of Papua. A participatory and democratic resolution of the Papua conflict for “Papua, Land of Peace” requires the participation of as many as possible, if not all, of the residents of Papua. In the process of dialogue the interests of non-Papuans cannot be neglected, even though their position in the conflict is different to that of indigenous Papuans.

The position of non-Papuans in the Papua conflict is unique, since they have not been the victims of violence at the hands of the Indonesian state. There are no groups of non-Papuans in Papua who oppose the government of Indonesia. The government also has never looked upon non-Papuans as state enemies. The separatist label has never been levelled against non-Papuans living in Papua. The government has never felt the need to conduct military operations against non-Papuans in the Land of Papua.

While non-Papuans have never been the target or victims of state violence in Papua, it should be recognised that peace is the desire of all people, irrespective of their background. Therefore, every person living in the Land of Papua should aspire to peace. It stands to reason that all people of Papua, indigenous and non-indigenous, wish to see Papua become a “Land of Peace.” Hence each person living in this land should contribute, either individually or collectively, to making Papua a “Land of Peace.” Every resident of Papua should also be given the opportunity and the space to participate actively in a dialogue process to resolve the Papua conflict by peaceful

9. Interim Targets to be Achieved in Dialogue

If the Jakarta-Papua dialogue is conducted in a framework of “Papua, Land of Peace,” it should be possible for the two parties to agree on interim targets to be reached through dialogue. Agreement on targets could help the two parties to prepare themselves for dialogue. Both parties could think about their contribution to the targets they set together. Other parties would also be able to see what they could contribute to the success of the overall process of dialogue.

In my opinion, a Jakarta-Papua dialogue could be called a success if the government and Papuan people come to agreement on

- the characteristics of “Papua, Land of Peace” that both parties want to build, together with other elements of civil society;
- the fundamental problems that should be addressed together in order to bring about “Papua, Land of Peace”;
- the main causes of these fundamental problems;
- solutions not only to overcome the fundamental problems but also their causes, and also to promote the creation of “Papua, Land of Peace”;
- ways to prevent these problems from recurring;
- the roles of various stakeholders who are involved in realising “Papua, Land of Peace”.

Agreement on these points would be interim targets in the dialogue process.

10. Stages of the Dialogue Process

When the issue of dialogue to resolve the Papua conflict is raised in meetings or via the mass media, many people immediately envisage a meeting between delegations from Indonesia and Papua around a negotiation table. However, in my view, this kind of meeting would be only one stage – the final stage – of a long process of dialogue. A Jakarta-Papua dialogue cannot be limited, narrowly understood or restricted to only this final stage of a process. The preceding stages must also be recognised as an integral part of a broader process of dialogue between Jakarta and Papua. It also goes without saying that the stages in the dialogue between Jakarta and Papua must be agreed together by the two parties and stated in the ToR.

The stages of dialogue should be formulated with consideration for the principles, objectives and interim targets for dialogue that have been agreed upon by the two parties and with the involvement of all the people of Papua. In my opinion, there could be four stages to a Jakarta-Papua dialogue:

1. internal dialogue among indigenous Papuans;
2. dialogue between indigenous and non-indigenous Papuans;
3. dialogue between representatives of the Papuan people in Papua and overseas;
4. dialogue between representatives of the Indonesian government and the Papuan people.

10.1. Internal dialogue among indigenous Papuans

Internal dialogue among indigenous Papuans would be the first stage in a comprehensive process of dialogue on the Papua conflict. The process must begin in Papua, where the conflict occurs. In this first stage participants in the dialogue

- indigenous Papuans – could discuss a number of questions, such as
- What are the features of “Papua, Land of Peace”?
- What are the problems that impede “Papua, Land of Peace”?
- What are the causes of these problems?
- What solutions are needed to address these problems?
- What solutions are required to address the root causes of these problems?
- What policies must be taken to prevent these problems from occurring in the future?
- What roles should be played and tasks undertaken by various parties (government and civil society) to bring about “Papua, Land of Peace”?

I see two approaches to holding this kind of internal dialogue among indigenous Papuans. The first would be to conduct a dialogue in a number of places in Papua

and then finalise this in a plenary conference that would include representatives from all tribal groups and areas. The second possibility is to hold one large conference with participation by representatives from all tribal groups and areas. Whichever option is pursued, it is fundamental and of primary importance for this dialogue that the majority of, if not all, Papuans should be included. The outcomes of this internal dialogue should then be referred to the Papuan People’s Council (MRP), the only institution recognised by the Indonesian government as the legitimate cultural representation of the Papuan people.

10.2. Dialogue between indigenous and non-indigenous Papuans

Once dialogue has been held among indigenous Papuans, the next step would be dialogue among all the residents of Papua. The participants in this dialogue should include representatives of indigenous Papuans and non-indigenous residents of Papua. The dialogue should discuss topics such as:

- What are the features of “Papua, Land of Peace”?
- What are the problems that impede “Papua, Land of Peace”?
- What are the causes of these problems?
- What solutions are needed to address these problems?
- What solutions are required to address the root causes of these problems?
- What policies must be taken to prevent these problems from occurring in the future?
- What roles should be played and tasks undertaken by various parties (government and civil society) to bring about “Papua, Land of Peace”?

There are two alternatives for internal dialogue among residents of Papua. The first would be to conduct a dialogue in a number of places in Papua and then to finalise this in a plenary conference that would include representatives from all residents of Papua and all areas. The second possibility would be to hold one large conference with participation by representatives from all the residents of Papua. Whichever course is chosen, the majority of the people, if not all, should be involved in this process. The outcomes of this dialogue would be referred to the assemblies of the provinces of Papua and West Papua as representative institutions. The provincial assemblies would then refer the outcomes of the dialogue to the government of Indonesia via their governors. The outcomes of this dialogue could serve as input for the Indonesian government in preparation for dialogue with representatives from Papua.

10.3. Dialogue between representatives of the Papuan people in Papua and in exile

The involvement of Papuans living overseas (in exile) is also vital to ensuring a peaceful and democratic resolution of the Papua conflict. Without their involvement in the dialogue process the conflict would continue and the people of Papua would not enjoy a peaceful existence. For this reason Papuans living overseas must also be involved.

In my view, once internal dialogues among indigenous Papuans, and then among indigenous and non-indigenous Papuans have been held, the next step would be dialogue among indigenous Papuans in Papua and overseas. This dialogue could discuss issues such as:

- What are the features of “Papua, Land of Peace”?
- What are the problems that impede “Papua, Land of Peace”?
- What are the causes of these problems?
- What solutions are needed to address these problems?
- What solutions are required to address the root causes of these problems?
- What policies must be taken to prevent these problems from occurring in the future?
- What roles should be played and tasks undertaken by various parties (government and civil society) to bring about “Papua, Land of Peace”?

This dialogue could be held in a foreign country. Representatives from Papua could present the decisions and outcomes from internal dialogue as a basis for discussion. This meeting could also appoint representatives of indigenous Papuans who could represent Papua in a future dialogue with the government. The agreements made in this dialogue should reflect the unity of the position of the Papuan people. This would help to set the stage for dialogue with the government. The agreements made in this internal dialogue could form the agenda for dialogue between representatives of the Papuan people and the government.

10.4. Dialogue between representatives of the Indonesian government and the Papuan people

This would be the final stage in the dialogue process. In this stage representatives from the government and the Papuan people would engage in a dialogue facilitated by a third party agreed upon by the parties to the conflict. In this dialogue, participants would discuss the same issues that were discussed in preparatory dialogues:

- What are the features of “Papua, Land of Peace”?
- What are the problems that impede “Papua, Land of Peace”?
- What are the causes of these problems?
- What solutions are needed to address these problems?
- What solutions are required to address the root causes of these problems?
- What policies must be taken to prevent these problems from occurring in the future?
- What roles should be played and tasks undertaken by various parties (government and civil society) to bring about “Papua, Land of Peace”?

As each of these questions will have been discussed previously, each party will come to the negotiating table able to represent the outcomes of previous dialogues. It is hoped that this opportunity to deepen understanding of each these issues, to reflect and discuss in detail will enable representatives of the government and the Papuan people to reach agreement on a number of issues.

However, agreement alone is not sufficient to bring about “Papua, Land of Peace”. What must also be agreed upon is how to follow up agreements reached together in the course of dialogue. The government and the Papuan people must also commit together to engage in follow-up and concrete action to implement agreements.

11. Participants in the Dialogue

From the preceding explanation it should already be clear who would participate in the dialogue. The participants in the internal dialogue among indigenous Papuans would be exclusively indigenous Papuans. The second stage of internal dialogue would include indigenous and non-indigenous Papuans. The participants in the third stage would be indigenous Papuans. Participants in the final stage would be negotiating panels representing the government of Indonesia and indigenous Papuans. It should be stressed that in this entire process foreigners would not be given the opportunity to participate in dialogue.

One issue that has yet to be given serious attention by indigenous Papuans is the composition of the participants in the dialogue, in particular in the final stage of dialogue with the government. In this stage the participants would be involved in the work of three bodies; a negotiating panel, a support team and a steering committee. Each body would have a different role to play in the process.

Those involved in the dialogue forum would be the negotiating teams of the two parties to the conflict. Each team should have no more than three to five people. The negotiating teams would have the mandate of the parties they represent. As representatives of their respective sides, they will know the problems of the Land of Papua as well as the political and governance systems of Indonesia and be able to convey their views in a rational way. Whoever is chosen to serve on the negotiating panels must understand that dialogue is not an opportunity to exhibit emotions, but to find a peaceful solution and reach a series of compromises that can help to ensure that the other side “maintains face”. Hence negotiators who tend to be emotional and not to comply with the previously agreed rules for dialogue must not be allowed to attend further dialogue sessions. This is important in order to ensure the integrity of the process.

Each negotiating panel must be supported by competent people. Advisory teams could consist of people who are trusted and have the mandate of the sides they represent. They must be able to give support to those appointed to the negotiating panels. They must be able to provide ideas, views and expertise to assist the negotiators. They must be present during dialogue, but not party to the actual negotiations.

The negotiating panels and advisory teams would be guided by their respective steering committees. Members of the committee need not be present at the venue of the dialogue, but could remain in their regular places of residence. Authority would rest with the steering committee. It would give direction to the

negotiating panel and advisory team. The negotiating panel would not be able to agree upon proposals that come up in the course of dialogue if this has not already been approved by the steering committee. Therefore, the negotiating team must consult the steering committee on any new suggestions or proposals that emerge during the course of dialogue. The negotiating panels would only be able to accept a proposed solution if it has been already agreed to by the steering committee.

Each side must appoint people who could serve on a steering committee. Each side must select and appoint people who could serve as advisors as well as select the members of their negotiating panel.

12. Facilitators

The importance of facilitators throughout the entire dialogue process should not be underestimated. The presence of facilitators and the roles they play are vital in assisting the process of dialogue. There are a number of different institutions that could play facilitatory roles at different stages in the process:

1. **Papuan People's Council (Majelis Rakyat Papua/MRP)**, the officially recognised cultural representation of indigenous Papuans, could play a role in facilitating internal dialogue among indigenous Papuans in the Land of Papua.
2. **Papua Province Regional Assembly (Dewan Perwakilan Rakyat Papua / DPRP)**, the official institution for representation of Indonesian citizens in the Province of Papua, could be appointed as facilitator for dialogue among Papuans in the Province of Papua.
3. **West Papua Province Regional Assembly (Dewan Perwakilan Rakyat Papua Barat / DPRPB)**, the official institution for representation of Indonesian citizens in the Province of West Papua, could be appointed as facilitator for dialogue among Papuans in the Province of West Papua.
4. **West Papua National Coalition for Liberation (WPNCL)** based in Port Villa, Vanuatu, could serve as facilitator for dialogue between indigenous Papuans in Papua and in exile. This coalition formed by a number of Papuan groups acts as an umbrella organisation for all organisations.
5. **A neutral and independent third party** could serve as facilitator for the final stage of dialogue between representatives of the government and the Papuan people. The presence of a third party would help to foster mutual trust between the two conflict parties.

13. Contribution of Research and Academic Institutions

Research institutions or think-tanks could make a significant contribution to the entire process of a Jakarta-Papua dialogue. The kinds of institutions I have in mind are the University of Cenderawasih (*Uncen*) in Jayapura, the University of Papua (*Unipa*) in Manokwari and the Indonesian Institute for Sciences (LIPI) in Jakarta. Each of these three institutions has undertaken research on a number of aspects of life in the Land of Papua. They could therefore contribute by undertaking academic research on a number of problems in Papua. The outcomes of this research could be used to facilitate the process of discussion and reflection. Academic research would be very useful for the government and Papuans in sharpening understanding of and clarifying the problems that need to be overcome as well as in finding solutions that are just and appropriate to building peace in the Land of Papua. This would help people on both sides to understand the problems in an objective way and to come up with rational solutions.

The outcomes of academic studies could be utilised by all parties as a part of efforts to bring about a peaceful resolution of the Papua conflict. People with competence must be integrated into the dialogue process so that they can share the outcomes of research. In academic research importance attaches not to the background of the researcher but to the findings of his academic research. I feel it would be wise to involve a number of experts from these three institutions who could contribute to dialogue through the provision of resources, particularly in the internal dialogue among indigenous Papuans (stage one) and the residents of Papua (stage two). The outcomes of academic research could be discussed by the government of Indonesia and Papuans in the dialogue process.

14. The Role of a Third Party

The involvement of a third party in a Jakarta-Papua dialogue is not intended to internationalise the Papua conflict. Its role would be to help the parties arrive at a peaceful solution. There is also no intention to allow foreign interests to intervene in domestic issues. The Indonesian government, based on its own experience in facilitating dialogue and talks for conflict resolution in the international arena, knows full well the importance of working with a third party as a facilitator in dialogue and negotiations.

As a Papuan, I can also draw inspiration from the role of neutral and independent third parties in assisting conflict mediation in the cultural practice of a number of tribes in Papua. In Papuan cultures, resolution of conflict between two people or families or groups in conflict involves a third party. In general the third party assuming the role of a facilitator is a person known and trusted by the two sides in the conflict. Such persons are neutral, wise and skilled as facilitators in resolving conflicts fairly and peacefully. Based on their own cultural experience, Papuans support the role of a third party in dialogue on the Papua conflict.

However, it should be explained that a third party to facilitate dialogue between the government of Indonesia and the Papuan people could not be an Indonesian institution. *Firstly*, the nature of the situation in Papua requires the involvement of a third party from outside Indonesia, irrespective of the kind of institution. The situation in Papua is not a conflict between churches in Papua or even a conflict between people of different religions. Nor is it a conflict between indigenous and non-indigenous Papuans. The conflict currently unresolved in Papua is a conflict between indigenous Papuans and the government of Indonesia. Hence neither the Indonesian Council of Churches nor the Indonesian Council of Ulama nor the Indonesian Bishops Conference could serve as facilitators for a Jakarta-Papua dialogue. Their involvement – if any – would be limited to that of observers. The fact remains that Indonesian institutions are vulnerable to intervention by the government and therefore Papuans are not convinced of their neutrality.

Secondly, the nature of the relationship between Papuans and the government should also be taken into consideration. Over the past 40 years this relationship has been characterised by violence and mutual suspicion. The relationship has never been close. A dialogue facilitated by an Indonesian institution, even one with international credibility, would therefore only deepen and exacerbate distrust and suspicion. This would be at odds with our shared desire to seek a Jakarta-Papua dialogue built on mutual trust.

Bearing these considerations in mind, a third party assuming the role of a facilitator of dialogue must come from outside Indonesia. The involvement of a third party would be vitally important in building trust between the two sides in the conflict. A third party could play a role at three different stages. Firstly, the third party could facilitate meetings between representatives of the two sides to draft, discuss and agree upon the Terms of Reference (ToR) that outline the basic principles, final objectives, interim targets, phases, role of the facilitator, location and financial resources for dialogue. Discussion on these ToR could be held outside of Indonesia in a neutral location so that all parties are able to express themselves freely. In the second phase the third party facilitator could mediate in a dialogue between the government of Indonesia and Papuans to produce a joint agreement. In the third and final stage the third party could monitor implementation of the agreement.

15. Monitoring Follow-up

The signing of an agreement would not be the final stage of a conflict resolution process for Papua. Once the text of an agreement has been agreed upon, the government of Indonesia and the Papuan people will need to address a more difficult task, i.e. follow-up and concrete action to implement the joint agreement. The commitment of the two sides to resolve the Papua conflict peacefully would only really be tested after an agreement is reached in the final stage of dialogue. If the agreement is not implemented, all the efforts and sacrifices that led to the agreement would be in vain. The whole notion of a Jakarta-Papua dialogue would be meaningless. Both sides would lose credibility.

A third party would continue to play an important role in ensuring proper follow-up to an agreement. However, once an agreement has been signed between the government and the Papuan people, the third party can no longer function as a facilitator. The third party would take on the role of a monitor in supporting and overseeing implementation of the agreement reached in the final stage of dialogue.

From the perspective of the Papuan people the role of a third party in this final stage is vital and fundamental. This has to do with Papuans' experience in the past. Given that the government has not been consistent in implementing the Law on Special Autonomy for Papua, Papuans fear that the government would not follow through on any agreements made in the process of dialogue. In order to build Papuans' trust in the government, a third party would need to play a role in monitoring implementation of an agreement. With a third party playing a role in supporting, urging and giving direction, the government and Papuan people could show the international community that both parties are genuinely committed to all the agreements reached in the final stage of dialogue. If all agreements are implemented effectively and with consistency, I am confident that Papua can become a Land of Peace.

Conclusion

In conclusion I would like to emphasise four points. *Firstly*, I have deliberately refrained from outlining in this paper issues that could be discussed as part of an agenda for dialogue between Jakarta and Papua. The reason is that I hope the items for the agenda have become self-apparent in the course of the discussion of the key questions proposed for dialogue among indigenous Papuans, among all residents of Papua and among indigenous Papuans in Papua and in exile. Of course, at a given moment in time the two sides must mutually agree upon the agenda for discussion.

Secondly, to date many people have asked who would represent the Papuan people in a dialogue with the Indonesian government. The answer to this question must be based on the principle that the government must engage in dialogue with those Papuans whom the Indonesian government regards as its enemies. The composition of the negotiating panel on the Papuan side would be discussed and decided upon by the Papuans themselves through internal dialogue that would include representatives of the Papuan people in Papua and of those living in exile overseas in the third stage of the dialogue. Hence it is important that the third stage of dialogue should have the full support of the Indonesian government and the international community.

Thirdly, both the Indonesian government and the Papuan people seek a resolution of the Papua conflict through peaceful dialogue. However, this process of dialogue has yet to begin. An urgent priority at this stage, therefore, is to start a process of informal meetings among a number of people from Jakarta and Papua with a view to exchanging ideas and exploring options for how a Jakarta-Papua dialogue could be pursued in constructive and mutually satisfactory ways.

Fourthly, I earnestly believe that if a Jakarta-Papua dialogue is held it would be the Indonesian government (not the Papuan people) that would win praise, respect and trust from the international community.

The time has come to look forward and move ahead in realising our shared ideal, which is the realisation of "Papua, Land of Peace." Discussions – both informal and formal – on the Papua conflict can now begin.

Footnotes

- 1 For my personal perspective on the Papua conflict see NELES TEBAY, *West Papua: The Struggle for Peace with Justice*, Catholic Institute for International Relations/CIIR, London, 2005.
- 2 The Indonesian Institute of Sciences (LIPI) identified four sources of conflict in Papua: (1) Marginalisation and discrimination of indigenous Papuans; (2) The failure of development, particularly in education, health and community economic empowerment; (3) The history of state violence; (4) Contradictions in the history and political identity constructs of Papua and Jakarta. See TIM LIPI, *Papua Road Map*, LIPI, Jakarta, 2008.
- 3 For details of the military operations conducted prior to 1990 see BUDIARDJO C. – LIONG L.S., *West Papua: The Obliteration of a People*, Tapol, London, 1988, pp. 77-92.
- 4 For information on the military operation in Mapunduma see LEMBAGA STUDY DAN ADVOKASI HAK-HAK ASASI MANUSIA, *Laporan dari Mapnduma*, 21 February 2000.
- 5 The details of the Wasior case can be found in AMNESTY INTERNATIONAL, *Grave Human Rights Violations in Wasior, Papua*, Amnesty international, London 2002.
- 6 For information on the Wamena incident see KOALISI LEMBAGA SWADAYA MASYARAKAT, *Laporan Awal Kasus Wamena*, 4 April 2003.
- 7 WIDIYANTI A., “Warga Papua Laporkan Kekerasan Oleh TNI ke Komnas HAM”, in *detikcom*, 22 November 2004
- 8 “Otonomi Khusus Papua Gagal,” in *Sinar Harapan*, 26 November 2008
- 9 ODEODATA H JULIA, “Gubernur Papua: 72 Persen Penduduk Papua Miskin”, in *Sinar Harapan*, 2 February 2007
- 10 Law on Special Autonomy for Papua, No. 21/2001, paragraph 77
- 11 “Otonomi Khusus Papua Gagal,” in *Sinar Harapan*, 26 November 2008
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- 14 *The Jakarta Post.com*, 4 March 2008
- 15 Media Release, 10 March 2008, *House Foreign Affairs’ Subcommittee Chairmen Call upon Indonesia to End Unreasonable Restrictions on International Access to West Papua*.
- 16 See the letter by 40 members of the U.S. Congress to President Susilo Bambang Yudhoyono dated 29 July 2008.
- 17 “Hasil IPWP London diumumkan,” in *Cenderawasih Pos*, 22 October 2008
- 18 Transcript of the address by President Susilo Bambang Yudhoyono at a national ecumenical Christmas celebration, Jakarta Convention Center, 27 December 2005; and “Presiden: Pertahankan Suasana Damai di Indonesia”, in *Sinar Harapan*, 28 December 2005.
- 19 PRESIDENT SUSILO BAMBANG YUDHOYONO, *State Address of the President of the Republic of Indonesia and the Government Statement on the Bill on the State Budget for the 20006 Fiscal Year and its Financial Note before the Plenary Session of the House of Representatives on 16 August 2005*
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- 21 KURNIAWAN HARI, “EU backs RI’s stance on Papua,” in *The Jakarta Post*, 22 April 2006
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- 23 ABDUL KHALIK, “Flag raising ‘not act of separatism’,” in *The Jakarta Post*, 19 September 2008
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- 26 “Pemerintah perlu segera gelar dialog soal Papua,” in *Kompas*, 12 May 2006
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- 28 “Mari Kita Luruskan Sejarah Papua Barat,” Resolution of the Second Papua Congress, June 2000
- 29 See “OPM Ingin Berdamai,” in *Papua Post*, 13 December 2002

- 30 *West Papua National Coalition for Liberation* (WPNCL) is an organisation that accommodates all groups struggling for an independent West Papua and serves as an umbrella body. WPNCL was formed in Port Villa, Vanuatu, in April 2008.
- 31 Press release by *West Papua National Coalition for Liberation* (WPNCL), 29 April 2008
- 32 LEO LABA LADJAR, “Kongres Papua: Memutuskan Apa?,” in *Berita Keuskupan Jayapura*, 30 (2000), p. 7
- 33 For an insight into the perspectives of the bishops in Papua see PIMPINAN-PIMPINAN GEREJA KATOLIK, *Gambaran Permasalahan di Papua*, SKP Jayapura, Jayapura, 2000.
- 34 One example of a joint statement by church leaders urging action by the government and the Papuan people to resolve conflict through dialogue is PIMPINAN-PIMPINAN GEREJA, *Pokok-pokok pikiran Gereja-gereja di Papua Mengenai Tragedi kemanusiaan di Wamena 6 October 2000*.
- 35 “Pernyataan Keprihatinan Para Pimpinan Gereja,” 22 October 2008
- 36 NETHY DHARMA SOMBA, “Papuan Church Leaders Call for Peaceful Talks to End Dispute,” in *The Jakarta Post*, 30 October 2008
- 37 See the joint statement signed by 87 religious leaders on 15 September 2005.
- 38 PIMPINAN-PIMPINAN AGAMA DI PAPUA, *Seruan Penghentian Tindak Kekerasan di Tanah Papua*, tanggal 14 June 2001. In subsequent citations referred to as *Seruan penghentian Tindak kekerasan di Tanah Papua 14 June 2001*.
- 39 PIMPINAN-PIMPINAN AGAMA DI PAPUA, *Musyawarah Antar pimpinan Umat Beragama*, tgl 27-28 May 2002, in Jayapura, no. II,1.f.
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- 41 Consultative Forum of Religious Leaders in Papua (Forum Komunikasi Para Pimpipinan Agama (FKPPA), *Membangun Papua Tanah Damai ditengah Berbagai Tantangan*”, appeal by FKKPA to all faith communities ahead of the Day of Peace in the Land of Papua, 5 February 2008, delivered by TVRI and RRI by the Chair of FKKPA, Mgr. Leo Laba Ladjar, OFM.
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- 43 “Ratusan Mahasiswa Datangi DPRP Provinsi Tuntut Segera Dilakukan Dialog Internasional”, in *Cenderawasih Pos*, 19 October 2004
- 44 See “Papuan Women’s Groups Call for Dialogue to End Decades of Cloud,” in *The Jakarta Post.com*, 27 November 2008.
- 45 For the meaning of the concept of “Papua, Land of Peace” according to the religious leaders in Papua see J. BUDI HERNAWAN (ed.), *Papua, Land of Peace: Addressing Conflict, Building Peace in West Papua*, SKP Jayapura, Jayapura, 2006; see also NELES TEBAY, *Interfaith Endeavours for Peace in West Papua*, missio, Aachen, 2006; TIM SKP JAYAPURA, *Membangun Budaya Damai dan Rekonsiliasi: Dasar Menangani Konflik di Papua*, SKP Jayapura, Jayapura, 2006.

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